An Ethical Analysis of Profiling in Modern America

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Abstract

Since George Floyd's death in 2020, racial profiling has been perceived as a persistent issue within modern law enforcement in the United States. This paper seeks to discuss the legality of profiling, as well as its moral and ethical implications. The first section of the paper focuses on parsing out federal and state legislation as well as jurisdictional documents that provide context for the legality of profiling. Specifically, it mentions the Fourth Amendment, Fourth Amendment, as well as Whren v. United States. The second section of the paper focuses on defining the specific contexts in which profiling is legal compared to when it is illegal. Ultimately, legality depends on the intent and basis for a stop, the outcome of the stop. Lastly, the paper speaks to the ethical implications of the gray areas left by legislation and court rulings and how that has played out practically in modern society. Regardless of the legality of profiling, how law enforcement is perceived when the profile is equally as important.

Keywords: ethics, morality, racial profiling, bias, protected characteristics

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Since the start of the decade, the controversy surrounding the legal and ethical nature profiling has been stoked to a fever pitch. With the death of George Floyd, old questions about police use of excessive force against certain races have been brought up again. Alongside that, the recent methods of federal agencies to combat illegal immigration has raised new questions about whether profiling is legal to target specific groups. But what is profiling exactly? In Black's Law Dictionary, Gardner (2024) defines profiling as "The process of attempting to identify a suspect by analyzing the nature of the crime and the known facts about the perpetrator, using inferences about personality and behavioral characteristics." Unfortunately, since much of profiling is deductive, it can be difficult for officers and agencies to remove all bias from the investigative process. Due to that fact, part of the role of the Federal and State Legislature and judicial system is to define constitutional constraints on practices such as profiling to protect the rights of citizens and the health of society as a whole. While there have been Federal and State Amendments restricting profiling, there has been no outright legal ban on it. This is due to numerous gray areas where profiling is deemed legally legitimate, as well as how difficult it is to prove biased intent on the part of the officer. It is difficulty that defines the current moral and ethical tension within modern America.

Federally, there are two amendments that have direct implications for profiling; the Fourth amendment, and the Fourteenth amendment. The Fourth Amendment of the U.S. Constitution provides protections from unreasonable searches and seizures by the federal government. The Fourteenth Amendment guarantees that each citizen has equal protection under the law regardless of race, ethnicity, or sex. It is these two amendments that produce the ambiguity and tension on what constitutes legal and illegal profiling.

The equal protection clause within the Fourteenth Amendment is what makes it explicitly unconstitutional for federal agencies to use apply the law differently between citizens of different race, ethnicity, or sex. Applied to profiling, this means that it is unlawful for federal officers to target specific citizens based on racial characteristics or other preconceived biases. However, there are legal exceptions to using race as a characteristic for profiling (Simmons, 2021). Under "strict scrutiny", meaning that there are no other means available to do so and it is being used as an objective measure, an officer may use race or ethnicity as a profiling characteristic (Garner, 2024). An example of this would be if someone called 911 to report a break-in and described the perpetrator as a 5'10" African American male wearing a red shirt. In this scenario, with no other information available, officers are allowed to use that description to profile individuals in the nearby vicinity.

The Fourth Amendment is what creates the tension that allows for the possibility of legal racial profiling. What it guarantees for citizens is constitutional protection from unreasonable searches and seizures. The implication of this is that officers must have a reasonable warrant for pulling you over while driving, such as speeding or running a red light. However, what happens when a racially biased police officer finds a "reasonable warrant" for pulling over an African American? That is what the case "Whren v. United States" sought to answer. Brown, the plaintiff of the case was originally stopped due to a minor traffic violation but was then found to be in possession of cocaine. The side of the plaintiff argued that the stop was unconstitutional based on the fact that the officers were patrolling that area of town on the pretext of it being a high drug area. Meaning that they were looking for individuals to pull over. However, the court ruled that since the plaintiffs failed to signal a turn and did not adhere to the speed limit, the officers had sufficient warrant under the fourth amendment to pull the vehicle over (Whren v. United States,

1996). An unfortunate outcome of the ruling is that it effectively allowed racially motivated actions by officers as long as they had an objective reason for doing so (Simmons, 2021). A result of that outcome has been increased distrust and suspicion of law enforcement by minority communities (Simmons, 2021).

Due to this, especially in the wake of the racial unrest in 2020 due to the death of George Floyd, the department of Justice released guidelines for Law Enforcement on the use of "protected characteristics" (U.S. Department of Justice [DOJ], 2023). Echoing the Fourteenth Amendment, the guidelines state that law enforcement cannot use characteristics such as "race, ethnicity, gender, nationality, religion, sexual orientation, or gender identity" as part of their judgement for initiating a stop. However, it recognizes the tension mentioned earlier that are occasions that officers must rely on specific characteristics if they are objective and required for IDing the suspect. One of the accountability protections it offers against targeted profiling is that requires officers to log data for each altercation (DOJ, 2023). This provides a way to detect if specific agencies or officers are disproportionately stopping individuals based on protected characteristics.

The Whren decision ultimately showed that there is a limit to the specificity to which the federal government can legislate. The report from the Department of Justice showed this as well. They acknowledged the tension, but ultimately, they only offered guidelines, not specific solutions. This vagueness is usually on purpose. Often, federal rulings and guidelines are left like this so that state and local governments can provide their own laws and guidelines.

South Carolina, however, has not expanded much beyond federal statutes. To date, the state does not have any prohibitions on racial profiling beyond what is defined constitutionally. However, in 2005, South Carolina introduced legislation requiring all officers to log traffic stops

in which a ticket was not issued. The philosophy behind this legislation is to discourage "pretextual" stops; by keeping of every time an officer initiates a stop without reasonable warrant. Additionally, the failure of an agency to submit their traffic data annually is subject to having state funds withheld from them (S.C. Code Ann. § 56-5-6560, 2025).

Additional South Carolina legislation relating to profiling was introduced in 2012. It stated that so long as the officer had a prior valid reason to stop, detain, or arrest the individual in question, under reasonable suspicion the officer is allowed to determine if the suspect is "lawfully present in the United States" (S.C. Code Ann. § 17-13-170, 2025). This legislation echoes the Whren case in that it mainly provides an allowance for South Carolina officers to profile so long as they had prior reasoning. Ultimately, South Carolina does not expand much beyond the legislation of the Federal Government. While they do not enforce profiling bans, they do perform data audits of local law enforcement agencies. Policies on profiling are likely going to depend on what local jurisdiction one finds themselves in within South Carolina.

To reiterate what was explained earlier, the legality of profiling does not depend on the result of a stop, but rather the original intent and reason for the stop. Within the law, there is a distinction between using a "protected characteristic" as a bias to initiate a stop and using that same characteristic as way to identify a specific individual.

Under the fourteenth amendment, it is explicitly illegal for an officer to initiate a stop, detainment, or arrest, solely based on a person's race or other protected characteristic. As an extension of that, it is also illegal for a law enforcement officer or agency to use bias to inform their policing methods and patrol routes (Simmons, 2023). For example, an officer cannot patrol a Mexican neighborhood solely based on the reason that he believes that he is more likely to find

illegal aliens there. If an officer initiates a stop solely based on suspicion and bias of race or any other protected characteristic, it is illegal.

There are two primary ways that profiling is legal. The first way, which is seen as legitimate, is the use of profiling in order to find a specific suspect in which specific characteristics are already known (S.C. Code Ann. § 17-13-170, 2025). If dispatch reports to officers that a 6'5 Brazilian man just robbed a bank downtown, the officers are going to "profile" citizens downtown, especially Brazilian men, in order to arrest the culprit. This form of profiling is perfectly legal and required for police to effectively do their job.

Mentioned earlier in the Whren case, pretextual stops are the second form of legal profiling. A pretextual stop is one where an officer has a predetermined reason or bias for initiating a stop. As was ruled, Whren v. United States stated that so long as an officer has a valid warrant for initiating a stop, prior reasoning or bias does not matter unless it can be proven (Whren v. United States, 1996). The unfortunate side of this ruling is just how broad traffic law is. A stop could be initiated for failing to signal a turn, a broken taillight, slightly out of date tags, slight speeding, etc. While this form of profiling is technically legal, it leaves the door wide open a malicious profiling that is hard to prove. It is exactly this kind of profiling that has led to much of the moral and racial turmoil of the last five years.

Even though Supreme Court Cases like Whren made some forms of profiling technically legal, it didn't make moral or ethical to perform. Certainly, not all officers who perform profiling are doing so unethically, however, when legislation leaves room for biased policing it is eventually going to become a reality. When citizens, especially minority communities, perceive that their race or ethnicity is being used to profile them, a consequence of that is that they lose faith in the justice system (Utecht, 2021). When that distrust grows, those communities do not

report crime, they do not cooperate with investigations or act as witnesses and ultimately view law enforcement as a net negative on society. This was especially visible in the aftermath of the death of George Floyd, when there were national calls for the defunding of police. Instead, activists wanted that money to be redirected primarily into social or rehabilitation programs (Braswell et al., 2023).

Due to ambiguities in the federal court cases and legislation, profiling has become a moral and ethical gray area within the modern United States. The Fourteenth Amendment prohibits law enforcement from using race or any other protected characteristic as a reason to apply the law differently to an individual. However, the Fourth Amendment creates a loophole by allowing law enforcement to initiate a stop, even if they had prior bias, as long as they have sufficient warrant for initiating a stop such as failing to signal (Whren v. United States, 1996). This gray area created the need for the Department of Justice to create additional guidelines for federal officers, which extended the list of protected characteristics as well as requiring officers to log data for stops (DOJ, 2023). However, this still places a lot of responsibility on the states for how they will handle profiling. South Carolina followed the lead of the federal government by restricting the ability of officers to make pretextual stops, as well as requiring them to log stops made without any citation filed (S.C. Code Ann. § 17-13-170, 2025). But past that, South Carolina at a state level has not passed any state level proactive measures for combatting biased profiling. Because that is the case with most state laws, there will likely continue to be social unrest until a viable compromise is met. Law enforcement is a necessary function of society; without it our communities would dissolve into chaos. However, law enforcement must not lose sight of the fact that they are public servants, biased profiling eventually leads to an us vs. them mentality in both the officer and the civilian.

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